

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlmais Johnson	Team: Team # 4	CCRB Case #: 201102201	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/20/2011 9:00 PM	Location of Incident: § 87(2)(b) 77th Precinct stationhouse	Precinct: 77	18 Mo. SOL 7/20/2012	EO SOL 7/20/2012	
Date/Time CV Reported Tue, 02/22/2011 11:34 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/22/2011 11:34 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Morales	08213	933054	077 PCT
2. LT Eric Campbell	00000	918740	106 PCT
3. POM David Afanador	31730	936100	077 PCT
4. POM Arnold Murphy	29794	935374	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Georgina Gonzalez	05276	896880	PBBN

Officer(s)	Allegation	Investigator Recommendation
A.POM Arnold Murphy	Discourtesy: At § 87(2)(b) in Brooklyn, Officer Arnold Murphy spoke obscenely to § 87(2)(b)	§ 87(2)(b)
B.POM David Afanador	Discourtesy: At § 87(2)(b) in Brooklyn, Officer David Afanador spoke obscenely to § 87(2)(b)	§ 87(2)(b)
C.LT Eric Campbell	Abuse: Lt. Eric Campbell supervised the entry and search of § 87(2)(b) in Brooklyn.	§ 87(2)(b)
D.POM Jason Morales	Abuse: Officer Jason Morales searched § 87(2)(b) in Brooklyn.	§ 87(2)(b)
E.POM David Afanador	Abuse: Officer David Afanador searched § 87(2)(b) in Brooklyn.	§ 87(2)(b)
F.POM Arnold Murphy	Abuse: At § 87(2)(b) in Brooklyn, and at the 77th Precinct stationhouse, Officer Arnold Murphy refused to provide his name and shield number to § 87(2)(b)	§ 87(2)(b)
G.POM Jason Morales	Abuse: At the 77th Precinct stationhouse, Officer Jason Morales refused to provide his name and shield number to § 87(2)(b)	§ 87(2)(b)

Case Summary

On February 22, 2011, § 87(2)(b) filed a complaint with the Civilian Complaint Review Board via telephone. On January 20, 2011, at approximately 9:00 p.m., Officer David Afanador, Officer Jason Morales, and Officer Arnold Murphy chased § 87(2)(b) and § 87(2)(b) into § 87(2)(b) in Brooklyn. The following allegations resulted:

Allegation A) Discourtesy: At § 87(2)(b) in Brooklyn, Officer Arnold Murphy spoke obscenely to § 87(2)(b)

Allegation B) Discourtesy: Officer David Afanador spoke obscenely to § 87(2)(b)

§ 87(2)(g)

Allegation C) Abuse of Authority: At § 87(2)(b) in Brooklyn, Lt. Eric Campbell supervised the entry and search of § 87(2)(b) in Brooklyn.

§ 87(2)(g)

Allegation D) Abuse of Authority: Officer Jason Morales searched § 87(2)(b) in Brooklyn.

Allegation E) Abuse of Authority: Officer David Afanador searched § 87(2)(b) in Brooklyn.

§ 87(2)(g)

Allegation F) Abuse of Authority: At § 87(2)(b) in Brooklyn, and at the 77th Precinct stationhouse, Officer Arnold Murphy refused to provide his name and shield number to § 87(2)(b)

Allegation G) Abuse of Authority At the 77th Precinct stationhouse, Officer Jason Morales refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

This case was originally assigned to Investigator Sonja Rucnov, but was reassigned to Investigator Anna Vaysman on August 2, 2011 upon Investigator Rucnov's resignation from the agency. The case was reassigned on November 14, 2011 to Assistant Supervising Investigator Carlmais Johnson upon Investigator Vaysman's resignation from the agency.

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

- § 87(2)(b)

Statements to 911

According to Sprint Communications report § 87(2)(b) (encl. 3), on January 20, 2011, at 9:59 p.m., a female caller to 911 who identified herself as § 87(2)(b) from § 87(2)(b) and who was identified by the investigation as § 87(2)(b) reported that there were unidentified people with guns who were in her hallway kicking her door. She stated that she did not know what was going on.

CCRB Statement

§ 87(2)(b) filed her complaint with the Civilian Complaint Review Board on February 22, 2011 (encl. 4A-4B). She provided a sworn statement on March 4, 2011 (encl. 5A-5E), and provided follow up information via telephone on March 21, 2011 (encl. 6). § 87(2)(g) On January 20, 2011, § 87(2)(b) was inside of her duplex apartment located at § 87(2)(b) in Brooklyn. In order to enter the apartment, one has to climb a set of stairs and walk through two entrance doors to the house before reaching § 87(2)(b)'s door, which is made out of steel. There is an additional entrance to the apartment that can be accessed via a gate in the front yard. Both entrances face the street. Also present in the apartment was her husband § 87(2)(b), § 87(2)(b) old daughter § 87(2)(b) and two adult sons § 87(2)(b) and § 87(2)(b).

At approximately 9:00 p.m., § 87(2)(b) went outside to meet with friends, but § 87(2)(b) went outside to call him to come back because someone had called for him on the house telephone. Both § 87(2)(b) and § 87(2)(b) re-entered the apartment. § 87(2)(b) later learned that while outside, § 87(2)(b)'s cell phone had dropped a bit out of his pocket and he put it back inside. Once § 87(2)(b) and § 87(2)(b) had re-entered the apartment, § 87(2)(b) heard someone bang on her door. § 87(2)(b) looked through the peephole of her apartment door and saw that the individuals were police officers. She responded to their knocking by asking "Who are you?" One of the officers, who she described as a black male in his forties, either 5'0" or 6'0" in height with a muscular build, and dressed in "sporty" plainclothes, responded, "It's none of your fucking business, just open up the fucking door." This officer has been identified via investigation as Officer Arnold Murphy. In her sworn statement, § 87(2)(b) stated that she believed she heard more than one officer make this statement. § 87(2)(b) and § 87(2)(b) asked the officers, "Who the fuck are you?"

§ 87(2)(b) asked the officers why they were there, and asked if they could show her their badges, but the officers replied that they did not need to show her anything. § 87(2)(b) and § 87(2)(b) told § 87(2)(b) that they did not know what was going on. § 87(2)(b) called 911 several times to report that men with guns were at the door to her apartment and were trying to kick the door in. When the 911 operator informed § 87(2)(b) that there were officers in front of her home, she exited the house through the side entrance, and opened the gate for uniformed officers to enter. § 87(2)(b) and § 87(2)(b) followed her. Present were more than ten uniformed officers, and two of them entered the apartment. § 87(2)(b) described these officers as a white male in his thirties or forties, 5'3" in height and with a medium build; and a white or Hispanic male in his thirties or forties, with a medium build and black hair. These officers were identified via investigation as Officer David Afanador and Officer Jason Morales respectively. When the officers asked what was going on, § 87(2)(b) explained. The officers did not speak with § 87(2)(b) or § 87(2)(b). After the officers entered, § 87(2)(b) remained downstairs and did not follow the two officers inside.

§ 87(2)(b) was placed inside of the living room on the ground floor of her apartment. § 87(2)(b) wanted to leave the living room to see what was going on with § 87(2)(b) and § 87(2)(b) but an unidentified officer barred her from doing so. Plainclothes officers opened the basement in the backyard. The officers asked her where her sons were, but § 87(2)(b) did not know their location. There were other officers present at the location, and noted that there were more black officers than white officers, but she could not specify what they were doing. § 87(2)(b) heard the officers in the bedrooms on the upper floor of the apartment. Because § 87(2)(b) was in the living room at the time of the search, she could not determine which officers were on the second floor. § 87(2)(b) stated that she observed § 87(2)(b) being chased in the backyard, but later stated that she did not see § 87(2)(b) or § 87(2)(b) after the officers entered the residence.

Over ten officers were in the apartment, four to six of whom were in plainclothes. § 87(2)(b) asked Officer Murphy for his name and badge number while in the living room. Officer Murphy replied, “You don’t fucking need nothing” and refused to provide this information. § 87(2)(b) stated that the officers told her to sit down, to shut up, and to refrain from moving; § 87(2)(b) was upset because she wanted the officers to cooperate with her the same way she cooperated with them. She was also upset because the officers chased § 87(2)(b) and § 87(2)(b) out of the premises.

§ 87(2)(b) and § 87(2)(b) were ultimately arrested and charged with § 87(2)(b). § 87(2)(b) stated that as a result of the search, the telephone was broken, and two beds were bent so that they were no longer usable. Items inside of the closets had been thrown out, and the bedrooms of § 87(2)(b) and § 87(2)(b) looked as though they had been trashed.

On January 21, 2011, at approximately 2:30 a.m., § 87(2)(b) went to the 77th Precinct stationhouse with her brother—whose name and contact information she refused to provide—to file a complaint regarding the incident. Officer Murphy and a second officer, who she described as a black officer who was shorter and smaller than Officer Murphy and noted was present inside the apartment, were in the front desk area. Also present was an unidentified uniformed Hispanic officer in his thirties or forties of medium height and build. § 87(2)(b) asked to file a complaint against Officer Murphy and the officer that was in her apartment, but the officers did not respond to her request. § 87(2)(b) then asked Officer Murphy and the black officer for their names and shield numbers, but they did not respond to her request.

Attempts to Contact Civilians

§ 87(2)(b)

The investigation was unable to obtain a statement from § 87(2)(b) or witness § 87(2)(b) and § 87(2)(b) were called five times between April 19 and August 9, 2011, but they did not respond and there was no opportunity to leave a voicemail message. Please Call letters were sent to them on March 21 and April 19, 2011; these letters were not returned by the United States Postal Service. To date, § 87(2)(b) and § 87(2)(b) have not responded to attempts to contact them. A query of the Department of Correction inmate database on June 28, 2012 and July 12, 2012 indicates that they were not incarcerated (encl. 17A-17J).

NYPD Statement(s):

Subject Officer: OFFICER JASON MORALES

- *Officer Jason Morales is a § 87(2)(b) old Hispanic male, 5'8" in height and weighing 170 pounds, with brown hair and brown eyes.*
- *On January 20, 2011, Officer Morales was assigned to 77th Precinct Anti-Crime and worked from 5:30 p.m. to 8:00 a.m. the following day, and worked in plainclothes with Officer David Afanador and Officer Arnold Murphy. They utilized an unmarked vehicle, vehicle number § 87(2)(b) which he described as an unmarked black Chevrolet Impala.*

Memo Book

Officer Morales' Memo Book contained notations regarding the incident (encl. 8A-8C). At 10:15 p.m., he noted that he observed two black males at the corner of Rogers Avenue and St. Marks Avenue. At 10:44 p.m., he noted that two arrests had been made. He returned to the stationhouse at 10:55 p.m.

Arrest Report and Criminal Complaint Report

Officer Morales completed Criminal Complaint Report § 87(2)(b), § 87(2)(a) and Arrest Reports § 87(2)(a) 160.50 and § 87(2)(a) 160.50 regarding the arrests of § 87(2)(b) and § 87(2)(b) (encl. 8D-8I). The reports contain the following narrative: "§ 87(2)(b), § 87(2)(a) 160.50

§ 87(2)(b) was charged with § 87(2)(b), § 87(2)(a) 160.50
§ 87(2)(b) was charged with § 87(2)(b)
§ 87(2)(a) 160.50

Criminal Court Complaint

Officer Morales completed a criminal court complaint regarding the arrests of § 87(2)(b) and § 87(2)(b) (encl. 8J-8K). § 87(2)(b), § 87(2)(a) 160.50

CCRB Testimony

Officer Morales was interviewed at the CCRB on January 20, 2012 (encl. 8L-8O). On January 20, 2011, at approximately 10:15 p.m., Officer Morales was driving an unmarked vehicle with Officer Afanador and Officer Murphy, when he stopped at a light at the corner of Nostrand Avenue and St. Marks Avenue in Brooklyn. As they were waiting at the light, he observed a male he had not previously encountered dressed in all black exit § 87(2)(b) cross from the south to the north side of St. Marks Avenue, and then run north on Rogers Avenue. As he ran, the male kept his hand in his waist; Officer Morales explained that the significance of this was that it indicated that the male might be in possession of a gun. Officer Morales commented to his

partners, asking why the male was running out of the building in this manner. A second male also exited the building, but remained near the base of the stairs to the building. These males have been identified by the investigation as § 87(2)(b) and § 87(2)(b).

As soon as he was able to make a turn, Officer Morales did so to approach the male that was running. He explained that he wished to speak with the male that was running because they thought he might have a gun and because they wanted to ask him why he had exited the house in this manner. He said that the male's actions could have been indicative of someone who had just committed a crime, such as a robbery, inside of the house. The officers called out to the male, asking him to come over. The male turned around to look at them. As he did so, Officer Morales and the other officers were able to see the handle of a gun in his waistband. Upon recognizing that they were police officers, the male ran back to § 87(2)(b). When the second male at the base of the stairs saw the first running back, he ran up the stairs and waited for the first to enter before closing the door.

Officer Morales chased after the two males. He described the layout of § 87(2)(b) thusly: The building is a brownstone, with a set of steps leading up to the main floor. The two front doors, which have windows on them, lead to a hallway. Inside of the building are different apartments, possibly three apartments. Officer Morales ran to the building door and kicked down the two front doors. He was uncertain whether Officer Afanador or Officer Murphy were with him. Officer Morales stated that there was only one apartment on the first floor, and that he heard the door to the first-floor apartment slam shut as he kicked down the second front door.

The officers went to the door of the first-floor apartment, banged on it, identified themselves as police officers, and told the residents to open the door. He did not recall whether he used profanity while trying to get the door open. He denied saying, "It's none of your fucking business, just open the door." He then stated, "We might have said, 'Open the fucking door'" before later stating that he did not make this statement nor did he hear another officer make this statement. A female, identified via investigation as § 87(2)(b), came to the door. He believed that § 87(2)(b) was going to open the door because he then heard a male voice say, "Don't open the fucking door," followed by a woman and man screaming. The officers attempted unsuccessfully to kick down the door.

Unable to enter, the officers made a request for assistance from their supervisor, Sergeant Eric Campbell. By the time Sergeant Campbell arrived, other officers had already arrived at the location. He did not recall that there were any other supervisors present; while he was aware that the duty captain had been called to the scene, he could not say if the captain was ever present. Officer Morales and his partners informed Sergeant Campbell about how the incident started, and Sergeant Campbell called for the Emergency Services Unit to assist with the entry. There was no discussion amongst the officers about the need to obtain a search warrant for the location.

After being at the location for approximately 10 to 15 minutes, Officer Morales heard unidentified uniformed officers outside of the building speaking with § 87(2)(b). Officer Morales then realized that the first-floor apartment also has access to the basement via a gated door underneath the outside stairs. Officer Morales went to the basement entrance. Eventually, the woman opened the door and allowed the officers to enter. Officer Morales stated that Sergeant Campbell was present for the entry. § 87(2)(b) informed them that she had not opened the door because she did not know they were officers and was afraid. Officer Morales asked about the males, and § 87(2)(b) said that they were her sons, and that she did not know where

they were. She indicated that they stayed upstairs on the first floor of the apartment. Officer Morales stated that he had no further contact with § 87(2)(b) at the location.

The officers ascended a set of stairs inside the apartment leading from the basement to the first floor. Officer Morales and Officer Afanador went to the bedroom of § 87(2)(b) and § 87(2)(b) which contained two beds, but neither were present. While inside of the room, Officer Morales and Officer Afanador recovered bags of crack cocaine that were on a bed in plain view. Additionally, with the drugs was a piece of paper listing small dollar amounts. He determined that this was a receipt regarding the sale of marijuana. As they entered, he observed a soda can on the ground, which he found to be strange. When he inspected it, he determined that it contained a sample perfume bottle with crack cocaine residue. He did not recall where Sergeant Campbell or Officer Murphy were during the search of the bedroom. After he completed the search of the bedroom, he informed Sergeant Campbell of the results of the search and the findings, including how the contraband was recovered.

After looking in closets within the apartment, they looked for § 87(2)(b) and § 87(2)(b) by searching in other bedrooms in the apartment. He then went to the backyard, where he observed footsteps in the snow. A uniformed officer found one male hiding in a backyard several blocks away, and the other was found nearby hiding between two cars. § 87(2)(b) and § 87(2)(b) were handcuffed and brought back to § 87(2)(b) so that Officer Morales could identify them. The officers looked in the snow for the gun, but it was never recovered. § 87(2)(b) and § 87(2)(b) were transported to the 77th Precinct stationhouse for arrest processing.

§ 87(2)(b) went to the 77th Precinct stationhouse and asked to know what was going on. An unidentified officer informed Officer Morales, who was the assigned arresting officer, that § 87(2)(b) was at the stationhouse and wanted to speak to him about what happened. When Officer Morales went to the waiting area of the stationhouse, which is approximately 30 feet away from the front desk, he explained the situation. Also present for the conversation was § 87(2)(b) s unidentified brother. He stated that no other officers were present for the conversation; he did not know if § 87(2)(b) spoke to any other officers prior to his arrival. Officer Morales informed § 87(2)(b) that her sons were involved with narcotics—even showing her the recovered contraband so that she would see that he was not lying—and gang activity. § 87(2)(b) asked if she could bring quarters and food for her sons, and Officer Morales said that she could. Officer Morales stated that he provided § 87(2)(b) with his name, though he could not recall whether he simply volunteered this information, or if it was in response to a request; he added that he would have provided the information if requested by a civilian. When asked whether § 87(2)(b) ever indicated that she wished to file a complaint, Officer Morales said she did, but then indicated that he came to this conclusion because § 87(2)(b) threatened to sue him. He denied that § 87(2)(b) ever asked for any documentation regarding filing a complaint.

Subject Officer: OFFICER ARNOLD MURPHY

- Officer Arnold Murphy is a § 87(2)(b) old black male who is 6'3" in height and weighs 225 pounds with black hair and brown eyes.
- On January 20, 2011, Officer Murphy worked from 5:30 p.m. to 2:05 a.m. the following day and was assigned to the 77th Precinct Anti-Crime with Officer Morales and Officer Afanador. He was dressed in plainclothes and utilized an unmarked vehicle.

Memo Book

Officer Murphy's Memo Book indicates that he observed two black males with a gun at 10:15 p.m. At 10:40 p.m., he noted that two males had been arrested by Officer Morales (encl. 10A-10B).

CCRB Statement

Officer Murphy provided a statement to the CCRB in March 14, 2012 (encl. 10C-10E).

§ 87(2)(g)

After the males fled into the building, the officers gave chase. Officer Murphy stated that Officer Afanador exited the vehicle first and was directly behind the last male, followed by Officer Murphy, and then by Officer Morales who was delayed because he had to secure the car. Officer Afanador kicked the two doors open. The male entered an apartment on the first floor, which he stated that he personally observed. The officers tried to get the males to exit by banging on the apartment door. As they spoke with a female, identified by the investigation as § 87(2)(b) they heard a male tell § 87(2)(b) that she should not allow the officers to enter. Because the officers were uncertain whether the males resided at the location and had seen them with a gun, the officers became concerned that the incident was turning into a hostage situation. However, when one of the males referred to § 87(2)(b) as his mother, they realized that it was not. Officer Murphy denied that he or another officer used any profanity while attempting to gain entry to the location.

Sergeant Campbell arrived at the location a few minutes after the officers transmitted a request for him to come to the scene. After approximately 30 minutes, § 87(2)(b) opened the door. Officer Murphy stated that because the incident involved guns, the officers performed a "quick search of the scene." When asked to detail what the search entailed, he explained that the officers searched the apartment for the males that had fled. Officer Murphy stated that he searched the first floor area where the officers first made entry. During the same time, other officers searched different areas. Officer Murphy denied that § 87(2)(b) ever asked him for his name or shield number.

After searching, Officer Murphy went to the lower level into the kitchen where there was an opened door leading outside. In the freshly-fallen snow, he observed footsteps leading away from the building. Officer Murphy followed the footsteps, but discontinued this search when he was informed by radio that both perpetrators had been apprehended.

The males were brought to the stationhouse for arrest processing. Later that evening he learned from Officer Morales that the relatives of the arrested males—specifically § 87(2)(b)—had gone to the stationhouse and "wanted names." Officer Morales informed Officer Murphy that he and Sergeant Campbell had spoken with § 87(2)(b). He did not know whether Officer Morales provided this information. Officer Murphy stated that he never encountered any relatives at the stationhouse.

Subject Officer: OFFICER DAVID AFANADOR

- *Officer David Afanador is a § 87(2)(b) old Hispanic male who is 5'8" in height and weighs 205 pounds, with black hair and brown eyes.*
- *On January 20, 2011, Officer Afanador had the same tour and assignment as Officer Morales and Officer Murphy.*

Memo Book

At 10:44 p.m., Officer Afanador noted that there were two arrests (encl. 9A-9C).

CCRB Testimony

Officer Afanador provided a statement to the CCRB on February 29, 2012 (encl. 9D-9F).

§ 87(2)(g)

Officer Afanador stated that when the officers chased § 87(2)(b) and § 87(2)(b) into § 87(2)(b) he was directly behind them. Officer Afanador stated that he was the officer who kicked open the doors and observed § 87(2)(b) and § 87(2)(b) entering the apartment. When Officer Afanador was unable to kick open the apartment door, he tried multiple times to yell into the apartment for them to open the door, but male and female voices yelled back that they would not do so. Officer Afanador stated that he “probably” used profanity while yelling through the door but then, when asked if he recalled what he said, he replied, “Yeah. Open the fucking door! Open the fucking door!” When asked why he used profanity, Officer Afanador explained that he wanted to be very clear that they had to open the door because they were dealing with an armed person on the other side. The voices inside the apartment refused to open the door.

After the officers gained entry to the apartment, Officer Morales and Officer Murphy went to the room that a female, identified by the investigation as § 87(2)(b) indicated belonged to her sons. Present in the room in plain view was a bag of crack sitting on top of a bed or makeshift nightstand; he did not recall the exact location. The officers held on to the drugs, and then checked under the bed for and in the closets for § 87(2)(b) and § 87(2)(b). As Officer Afanador entered the room, he accidentally kicked a soda can that was on the floor. He stated that although it appeared to be a soda can, it did not have the same weight as a normal can, and when he picked it up and looked at it he saw vials of crack inside. When asked whether they searched for a gun, he stated that “everybody pretty much did a general looking for the gun” in any visible location that a gun could have been placed or concealed behind. He did not know where § 87(2)(b) was as the officers searched the home, and stated that he did not hear her request any officer’s identifying information.

Officer Afanador initially stated that he observed § 87(2)(b) at the stationhouse, but then clarified that although he did not see her specifically, there was a small group of family members and friends who had come to the stationhouse and stood in the lobby, demanding to know what had happened, what § 87(2)(b) and § 87(2)(b) were being charged with, as well as “names, shield numbers, and the whole nine.” While he was present, he did not recall which officer spoke with the family members. Officer Afanador stated that the family members were provided with the requested information and that he and whichever officer was standing next to him—who he believed to be Officer Morales—provided their names and shield numbers, which the family wrote down. Officer Afanador denied that he ever heard § 87(2)(b) say that he wanted to file a complaint against the officers, and stated that although she never said anything specific, her desire to file a complaint “was implied” when she asked for their names and shield numbers.

Subject Officer: SERGEANT ERIC CAMPBELL

- *Sergeant Eric Campbell is a § 87(2)(b) old black male who is 5’11” in height, and weighs 280 pounds, with brown eyes. Sergeant Campbell is bald.*
- *On January 20, 2011, Sergeant Campbell worked from 5:15 p.m. to 2:12 a.m. the following day as the Anti-Crime Supervisor with Officer Lamar Sanders. He was dressed in*

plainclothes, which he described as street attire though he could not detail exactly what he was wearing.

Memo Book

Sergeant Campbell's Memo Book indicates that at 9:12 p.m., he received a 10-85 request for assistance at § 87(2)(b) (encl. 7A-7B).

CCRB Testimony

Sergeant Campbell was interviewed at the CCRB on January 13, 2012 (encl. 7C-7D). On January 20, 2011, Sergeant Campbell was at the 77th Precinct stationhouse performing administrative duties when he received a 10-85 request from Officer Afanador, Officer Morales, and Officer Murphy, who were members of his team, requesting his assistance at § 87(2)(b). Sergeant Campbell responded and arrived at the incident location approximately five minutes later. He stated that by the time he arrived at the location, there were numerous officers already on scene, including an unidentified captain who may have been the Duty Captain or the Impact Captain.

Sergeant Campbell stated that by the time he arrived, the officers were already inside the apartment and one individual had already been placed under arrest. Sergeant Campbell entered the apartment to locate his officers, and spoke with Officer Morales. Officer Morales informed them that a female had opened the door and allowed them to enter. Sergeant Campbell spoke with the unidentified captain who wanted to know what was happening since the incident involved his officers. Sergeant Campbell relayed the information he received from Officer Morales.

Sergeant Campbell initially stated that as officers attempted to locate the second male, he spoke with a female, identified via the investigation as § 87(2)(b). He described § 87(2)(b) as being irate because she was screaming as she spoke on the telephone. Sergeant Campbell further stated that § 87(2)(b) was upset because officers had come to her home, but he later clarified his testimony and explained that he did not actually speak with § 87(2)(b) and only surmised why she was upset from the nature of her telephone conversation. Also present in the room at the time was Officers Afanador, Morales, and Murphy, the unidentified captain, and unidentified uniformed officers. Sergeant Campbell, who later stated that § 87(2)(b) spoke with unidentified uniformed "rookie" officers, denied that he heard any officer use profanity while speaking with her.

Sergeant Campbell transported one of the arrested males back to the stationhouse for arrest processing. He stated that he did not recall interacting with any civilians from the scene at the stationhouse.

Witness Officer: SERGEANT GEORGINA GONZALEZ

- *Sergeant Georgina Gonzalez is a § 87(2)(b) old Hispanic female, who stands 5'2" tall and weighs 140 pounds, with black hair and brown eyes.*
- *Sergeant Gonzalez worked in uniform from 4:00 p.m. to 1:05 a.m. with overtime and was assigned to patrol by herself. She was assigned to a vehicle.*

Memo Book

Sergeant Gonzalez did not have any entries in her Memo Book regarding the incident.

CCRB Testimony

Sgt. Gonzalez was interviewed at the CCRB on March 14, 2012 (encl. 11A-11B). Sgt. Gonzalez did not have an independent recollection of the incident. Sgt. Gonzalez did not remember if she worked as the 77th Precinct Desk Officer at any period on January 20, 2011, as indicated by the Roll Call. Sgt. Gonzalez was shown a copy of the command log regarding an arrest made by PO Morales. Sgt. Gonzalez said that she did not make the entries and noted that the entries were not in her handwriting. Sgt. Gonzalez did not recall anything about the arrests of § 87(2)(b) and § 87(2)(b) and did not recognize § 87(2)(b) from a photograph shown to her. Sgt. Gonzalez did not recall a female complaining about the arrest in question, or that anyone asked PO Morales for his name or shield number. She further indicated that she did not witness any civilian ask any officer for their name or shield number.

NYPD Document(s)

Sprint Police Communications

Sprint X15416 was generated in regards to a radio request for an additional unit at § 87(2)(b) (encl. 12A-12E). At 10:01 p.m., an anti-crime unit requested that ESU respond to the location in regards to a barricaded perpetrator inside of § 87(2)(b) with a hostage. At the same time, the duty captain was notified and was en route to the location. At 10:03 p.m., the anti-crime sergeant reported that he was on the first floor of the location, and at 10:05 p.m., he requested that aviation respond to the rooftop of the location. At 10:06 p.m., it was reported that two perpetrators were in the backyard. An ESU truck arrived at the location at 10:06 p.m. At 10:07 p.m., it was noted that a perpetrator had fled and gone into the basement of § 87(2)(b). One minute later, the duty captain authorized a Level 1 citywide mobilization. At 10:09 p.m., a description of the perpetrators was transmitted. By 10:25 p.m., the anti-crime sergeant reported that all perpetrators had been taken into custody. The mobilization was then terminated.

Property Vouchers

Officer Morales completed Property Vouchers § 87(2)(b) § 87(2)(b) and § 87(2)(b) regarding the arrests of § 87(2)(b) and § 87(2)(b) (encl. 12F-12H). Voucher § 87(2)(b) indicates that a § 87(2)(a) 160.50

§ 87(2)(b). Voucher § 87(2)(b) indicates that officers recovered § 87(2)(a) 160.50

77th Precinct Roll Call

Sergeant Eric Campbell is listed as the Anti-Crime Supervisor (encl. 12I-12J). Officer David Afanador, Officer Jason Morales, and Officer Arnold Murphy are listed as being assigned to SNEU. The 77th Precinct Roll Call for Tour 3 of January 20, 2011 indicates that Sergeant Georgina Gonzalez was assigned to be the Desk Officer.

Command Log

The 77th Precinct Command Log contains entries regarding the arrests of § 87(2)(b) and § 87(2)(b) indicating that both were arrested for § 87(2)(a) 160.50 (encl. 12K-12V).

Summons/Arrest for Incident and Disposition

- All criminal charges in connection to the arrest of § 87(2)(b) have been dismissed (encl. 13A-13G).
- § 87(2)(b), § 87(2)(a) 160.50 (encl. 13H-13M).

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of June 28, 2012 with regard to the incident (encl. 14).

Civilian(s) Criminal History

- As of July 11, 2012, Office of Court Administration records reveal no criminal convictions for § 87(2)(b) (encl. 17J).

- § 87(2)(b)
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- § 87(2)(b)
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2F).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (encl. 2G).
- § 87(2)(b) has filed one previous complaint with the CCRB:
 - § 87(2)(b)
[REDACTED]

Subject Officer(s) CCRB History

- Officer David Afanador has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 2A).
- Sergeant Eric Campbell has been a member of the service for 15 years and there is one substantiated CCRB allegation against him (encl. 2B).
 - In CCRB 201017094, Sergeant Campbell was substantiated for an improper stop. The Board recommended charges, but the NYPD disposition is not yet available.
- Officer Jason Morales has been a member of the service for eight years and there is one substantiated CCRB allegation against him (encl. 2C).
 - § 87(4-b), § 87(2)(g)
[REDACTED]
[REDACTED]

Conclusion

Identification of Subject Officer(s)

The investigation determined that the officers who were present at the beginning of the investigation were Officer David Afanador, Officer Jason Morales, and Officer Arnold Murphy. § 87(2)(b) alleged that her interaction with the officers began when they knocked on her door. She described one of the officers as a black male in his forties, and alleged that he spoke discourteously to her and refused to provide his identifying information both at the scene and at the stationhouse. Officer Afanador and Officer Morales are Hispanic males, while Officer

Murphy is a black male who is § 87(2)(b) old. § 87(2)(g)

Officer Afanador affirmed that he used profanity when knocking at the apartment door and that he searched the bedrooms of § 87(2)(b) and § 87(2)(b) § 87(2)(g). Both Officer Afanador and Officer Morales affirmed that they conducted a search of the bedroom of § 87(2)(b) and § 87(2)(b) § 87(2)(g).

While Sergeant Campbell asserted that the officers had already made entry into the location by the time he arrived, statements from the other officers and Sprint communications record indicate that he was the ranking supervisor on scene. § 87(2)(g)

§ 87(2)(b) alleged that when she was at the 77th Precinct stationhouse to inquire about the arrests, she spoke with two officers, Officer Murphy and a shorter and smaller black officer who did not enter her residence, who refused to provide their identifying information. In his statement to the CCRB, Officer Morales identified himself as the officer who spoke with § 87(2)(b) and this was partly corroborated by Officer Afanador. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A) Discourtesy: Officer Arnold Murphy spoke obscenely to § 87(2)(b)

Allegation B) Discourtesy: Officer David Afanador spoke obscenely to § 87(2)(b)

All parties agree that Officer Afanador, Officer Morales, and Officer Murphy chased § 87(2)(b) and § 87(2)(b) into § 87(2)(b) because the officers suspected that one of them had a gun, and then knocked repeatedly on § 87(2)(b)'s door because they refused to open the door. The officers also asserted that at the time they were uncertain whether § 87(2)(b) or § 87(2)(b) lived at the location, and believed that they might have barricaded themselves in the apartment with a civilian. § 87(2)(b) stated that when she asked who was knocking on the door, Officer Murphy replied, "It's none of your fucking business, just open up the fucking door." Officer Murphy denied that he or another officer made such a statement. In his testimony to the CCRB, Officer Afanador stated that he "probably" used profanity while yelling through the door and recalled his statement as "Open the fucking door! Open the fucking door!" He explained that he used profanity because he wanted to be very clear to § 87(2)(b) and § 87(2)(b) that they had to open the door because the officers knew that were armed. Officer Morales initially stated that the officers might have said, "Open the fucking door," though he later clarified that he did not make this statement. § 87(2)(g)

§ 87(2)(b) indicated that the officers knocked on the door before making the discourteous statement. The nature of the statement directs the civilian to open the door—in other words, to respond to the knocking. Officer Afanador provided the same explanation for his use of discourteous language, and further noted that he wanted to be clear given that the presence of the

gun increased the seriousness of the incident. In Police Department v. Iacurto, OATH Index No. 1064/90 (1990), it was held that if an officer uses profanity to secure a civilian's cooperation or for another legitimate law enforcement purpose, the profanity will not rise to the level of misconduct. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C) Abuse of Authority: Lt. Eric Campbell supervised the entry and search of § 87(2)(b) in Brooklyn.

After observing § 87(2)(b) and § 87(2)(b) one of whom had a gun, Officer Afanador, Officer Morales, and Officer Murphy chased them into § 87(2)(b) and then attempted to get them to open the door. The occupants of the apartment, which included § 87(2)(b) initially refused to open the front door to the apartment. Ultimately, however, as per her statement to the CCRB, § 87(2)(b) opened the door to allow officers to enter the location. § 87(2)(g)

§ 87(2)(g)

Allegation D) Abuse of Authority: Officer Jason Morales searched § 87(2)(b) in Brooklyn.

Allegation E) Abuse of Authority: Officer David Afanador searched § 87(2)(b) in Brooklyn.

Upon entering the location, Officer Morales and Officer Afanador went to the room § 87(2)(b) identified as belonging to § 87(2)(b) and § 87(2)(b) to search for them. Officer Morales and Officer Afanador searched the room for the men, with negative results. Officer Morales stated that while he was inside of the room, he recovered bags of crack cocaine that were on the bed in plain view with a piece of paper listing small dollar amounts. He also observed a soda can on the ground, and, because he found the position to be strange, he picked it up. Upon closer inspection, the can contained another bottle with crack cocaine residue inside. Neither § 87(2)(b) nor § 87(2)(b) provided the agency with a statement, § 87(2)(g)

§ 87(2)(g)

People v. Diaz, 81 N.Y.2d 106 (1983), established that “Under the plain view doctrine, if the sight of an object gives the police probable cause to believe that it is the instrumentality of a crime, the object may be seized without a warrant if three conditions are met: (1) the police are lawfully in the position from which the object is viewed; (2) the police have lawful access to the object; and (3) the object's incriminating nature is immediately apparent.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation F) Abuse of Authority: At § 87(2)(b) in Brooklyn, and at the 77th Precinct stationhouse, Officer Arnold Murphy refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that when she asked Officer Murphy for his name and shield number while at the scene, he replied, “You don’t fucking need nothing,” and refused to provide this information. She further alleged that he failed to provide the information when she repeated her request at the stationhouse. Officer Murphy denied that § 87(2)(b) ever requested his identifying information. There were no other civilian witnesses to the alleged statement, and the

interviewed officers did not recall such an interaction at either location. § 87(2)(g)

Allegation G) Abuse of Authority: At the 77th Precinct stationhouse, Officer Jason Morales refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that when she was at the stationhouse, she asked Officer Morales for his name and shield number, but that he did not respond to her request. Officer Morales affirmed that he spoke with § 87(2)(b) at the stationhouse, but claimed that he provided § 87(2)(b) with his name; he was uncertain whether § 87(2)(b) requested this information or if he volunteered this himself. Officer Afanador, who stated that he was present when relatives of the arrested individual arrived at the stationhouse, stated that he and another officer he believed to be Officer Morales, provided their identifying information to the family members. § 87(2)(g)

Team: _____

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date